NATIONAL COMPANY LAW TRIBUNAL

SPECIAL BENCH (COURT 1)

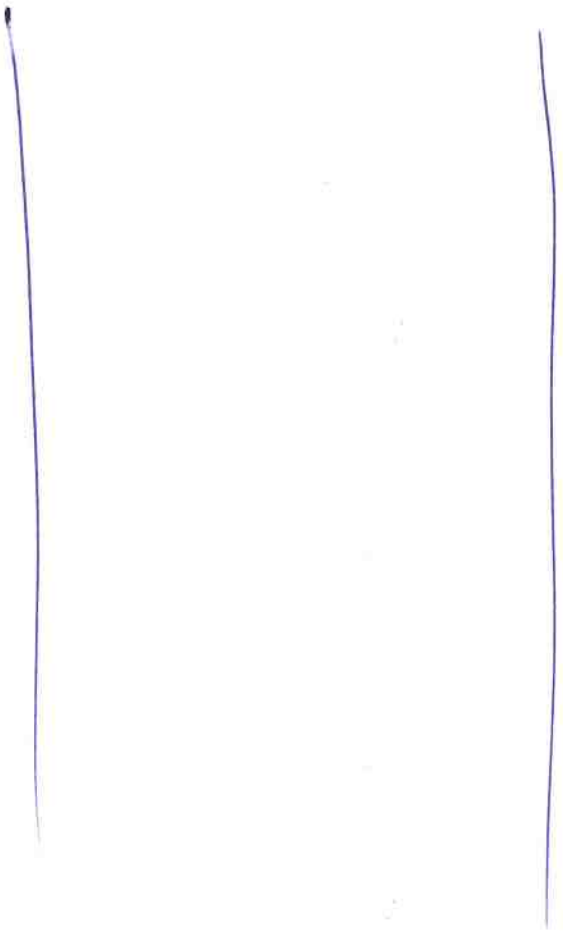
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF CHENNAI BENCH, NATIONAL COMPANY LAW TRIBUNAL HELD ON 23.11.2020 at 10.30 A.M. THROUGH VIDEO CONFERENCING.

PRESENT : SMT. R. SUCHARITHA, MEMBER – JUDICIAL
SHRI ANIL KUMAR B. MEMBER - TECHNICAL

APPLICATION NUMBER	**:**
PETITION NUMBER	**: CP/221-224/CAA/2020**
NAME OF THE PETITIONER(S)	**: Vishwatej Developers Pvt. Ltd.**
.NAME OF THE RESPONDENT(S)	**: Vishwatej Builders Pvt. Ltd.**
UNDER SECTION	**: Sec.230-232 of CA 2013**

Sl.No.	Name (in Capital)	Designation / Representation by whom	SIGNATURE



ORDER

Learned Counsel for Petitioner Mr. Pawan Jhabakh is present through video conferencing platform.

Counsel for the Petitioner submitted that this Petition is coming up for hearing in the 2nd Motion Notice stage. Accordingly this Tribunal issues direction as follows;

(i) The date of hearing of the Petition filed by the Petitioners for the sanction of the Scheme is fixed on **8th January 2021.**

(ii) Notice of the hearing shall be advertised in the newspapers viz., the "Business Standard" (English, Chennai edition) and "Dinakaran" (Tamil, Chennai edition) on or before 07.12.2020.

(iii) In addition to the above public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through the office of the Regional Director (Southern Region), Ministry of Corporate Affairs (MCA) (b) Registrar of Companies, Chennai, MCA (c) the Income Tax Department of the office having jurisdiction over the respective companies indicating specifically their PAN Nos. in the communication, (d) Official Liquidator and other sectoral regulators, if any, who may govern the working of the respective companies involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of

the Petition and the Annexures filed therewith atleast 15 days before the date fixed for hearing.

(v) The Petitioners shall (7 days before the date of hearing of the Petition), file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petition shall be on **8th January 2021** for the consideration of the approval of the Scheme as contemplated among the Petitioner Companies.

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(ANIL KUMAR B)
MEMBER (TECHNICAL)

-sd-
(R. SUCHARITHA)
MEMBER (JUDICIAL)